

Annexure 6: Standard definition

Insurer : New India Assurance Company Ltd.

TPA: Vidal Health TPA Pvt. Ltd.

Insurance Advisor: India Insure Risk Management and Insurance Broking Services Private Limited

1. ENTIRE CONTRACT: the policy, proposal form, prospectus and declaration given by the insured shall constitute the complete contract of insurance. Only insurer may alter the terms and conditions of this policy/ contract. Any alteration that may be made by the insurer shall only be evidenced by a duly signed and sealed endorsement on the policy.
2. COMMUNICATION : Every notice or communication (except relating to claim) to be given or made under this policy shall be delivered in writing at the address of the policy issuing office / Third Party Administrator as shown in the Schedule.
3. RENEWAL OF POLICY:
 - I)The Company shall not be responsible or liable for non-renewal of policy due to non-receipt or delayed receipt (i.e. After the due date) of the proposal form or of the medical practitioners report wherever required or due to any other reason whatsoever.
 - II) Notwithstanding this, however, the decision to accept or reject for coverage any person upon renewal of this insurance shall rest solely with the Company. The company may at its discretion revise the premium rates and / or the terms & condition of the policy every year upon renewal thereof. Renewal of this policy is not automatic. premium due must be paid by the proposer to the company before the due date.
 - III) The Company normally sends renewal notice but not sending it will not tantamount to deficiency in services.
4. PAYMENT OF PREMIUM: The premium payable under this policy shall be paid in advance. No receipt for premium shall be valid except on the official form of the Company signed by a duly authorized official of the company. The due payment of premium and the observance and fulfilment of the terms, provisions, conditions and endorsements of this policy by the Insured Person in so far as they relate to anything to be done or complied with by the Insured Person shall be condition precedent to any liability of the Company to make any payment under this policy. No waiver of any terms, provisions, conditions and endorsements of this policy shall be valid, unless made in writing and signed by an authorised official of the Company.

NOTICE OF CLAIM: Immediate notice of claim with particulars relating to Policy Number, ID Card No., Name of insured person in respect of whom claim is made, Nature of disease / illness / injury and Name and Address of the attending medical practitioner / Hospital/Nursing Home etc. should be given to the

Company / TPA while taking treatment in the Hospital / Nursing Home by Fax, Email. Such notice should be given within 48 hours of admission or before discharge from Hospital / Nursing Home.

5. **CLAIM DOCUMENTS:** Final claim along with hospital receipted original Bills/Cash memos/reports, claim form and list of documents as listed below should be submitted to the Company / TPA within 45 days of discharge from the Hospital / Nursing Home.
- a. Original bills, receipts and discharge certificate / card from the hospital
 - b. Medical history of the patient recorded by the Hospital.
 - c. Original Cash-memo from the hospital (s) / chemist (s) supported by proper prescription.
 - d. Original receipt, pathological and other test reports from a pathologist / radiologist including film etc supported by the note from attending medical practitioner / surgeon demanding such tests.
 - e. Attending consultants / Anaesthetists / Specialist certificates regarding diagnosis and bill / receipts etc.
 - f. Surgeon's original certificate stating diagnosis and nature of operation performed along with bills / receipts etc.
 - g. Any other information required by TPA / Insurance Company.
 - h. All documents must be duly attested by the Insured.

In case of post hospitalisation treatment (limited to 60 days) all supporting claim papers / documents as listed above should also be submitted within 7 days after completion of such treatment (upto 60 days or actual period whichever is earlier) to the Company / T.P.A. In addition insured should also provide the Company / TPA such additional information and assistance as the Company / TPA may require in dealing with the claim.

NOTE: Waiver of the condition may be considered in extreme cases of hardship where it is proved to the satisfaction of the Company that under the circumstances in which the insured was placed it was not possible for him or any other person to give such notice or file claim within the prescribed time limit. Otherwise Company / TPA has a right to reject the claim..

7. PROCEDURE FOR AVAILING CASHLESS ACCESS SERVICES IN NETWORK HOSPITAL/NURSING HOME:

- i) Claim in respect of Cashless Access Services will be through the Company / TPA provided admission is in a listed hospital in the agreed list of the networked Hospitals / Nursing Homes and is subject to pre admission authorization. The Company /TPA shall, upon getting the related medical details / relevant information from the insured person / network Hospital / Nursing Home, verify that the person is eligible to claim under the policy and after satisfying itself will issue a pre-authorisation letter / guarantee of payment letter to the Hospital / Nursing Home mentioning the sum guaranteed as payable, also the ailment for which the person is seeking to be admitted as in-patient.

ii) The Company /TPA reserves the right to deny pre-authorisation in case the hospital / insured person is unable to provide the relevant information / medical details as required by the Company /TPA. In such circumstances denial of Cashless Access should in no way be construed as denial of claim. The insured person may obtain the treatment as per his/her treating doctor's advice and later on submit the full claim papers to the Company /TPA for reimbursement within 7 days of the discharge from Hospital / Nursing Home.

iii) Should any information be available to the Company /which makes the claim inadmissible or doubtful requiring investigations, the authorisation of cashless facility may be withdrawn. However this shall be done by the Company /TPA before the patient is discharged from the Hospital.

REPUDIATION :

- a. The Insurer shall repudiate the claim if not covered / not payable under the policy. The Insurer shall mention the reasons for repudiation in writing to the insured person. The insured person shall have the right to appeal / approach the Grievance Redressal Cell of the company at its policy issuing office, concerned Divisional Office, concerned Regional Office or the Grievance Cell of the Head Office of the Company, situated at A-25/27, Asaf Ali Road, New Delhi-110002. against the repudiation;
- b. If the insured is not satisfied with the decision of the Grievance Cell under 5.8 (A), he / she may approach the Ombudsman of Insurance, established by the Central Government for redressal of grievances. The Ombudsman of Insurance is empowered to a d j u d i c a t e on personal lines of insurance claims upto Rs.20 lacs.

Any medical practitioner authorised by the TPA/Company shall be allowed to examine the Insured Person in case of any alleged injury or Disease requiring Hospitalisation when and so often as the same may reasonably be required on behalf of the TPA/Company.

2. DISCLOSURE TO INFORMATION NORM

The Policy shall be void and all premium paid hereon shall be forfeited to the Company, in the event of misrepresentation, mis-description or non-disclosure of any material fact..

3. SUBROGATION: Subrogation shall mean the right of the insurer to assume the rights of the insured person to recover expenses paid out under the policy that may be recovered from any other source
4. ARBITRATION CLAUSE: If any dispute or difference shall arise as to the quantum to be paid under the policy (liability being otherwise admitted) such difference shall independently of all other questions be referred to the decision of a sole arbitrator to be appointed in writing by the parties or if they cannot agree upon a single arbitrator within 30 days of any party invoking arbitration, the same shall be referred to a panel of three arbitrators, comprising of two arbitrators, one to be appointed by each of the parties to the dispute/difference and the third arbitrator to be appointed by such two arbitrators and arbitration shall be conducted under and in accordance with the provisions of the Arbitration and Conciliation Act, 1996.

It is clearly agreed and understood that no difference or dispute shall be referable to arbitration as herein before provided, if the Company has disputed or not accepted liability under or in respect of this policy.

It is hereby expressly stipulated and declared that it shall be a condition precedent to any right of action or suit upon this policy that award by such arbitrator/ arbitrators of the amount of the loss or damage shall be first obtained.

5. **DISCLAIMER OF CLAIM:** It is also hereby further expressly agreed and declared that if the TPA/Company shall disclaim liability in writing to the Insured for any claim hereunder and such claim shall not within 12 calendar months from the date of such disclaimer have been made the subject matter of a suit in a court of law, then the claim shall for all purposes be deemed to have been abandoned and shall not thereafter be recoverable hereunder.
6. **PAYMENT OF CLAIM:** The policy covers illness, disease or accidental bodily injury sustained by the insured person during the policy period anywhere in India and all medical / surgical treatment under this policy shall have to be taken in India and admissible claims thereof shall be payable in Indian currency.
7. **PERIOD OF POLICY:** This insurance policy is issued for a period of one year.
8. **RENEWAL OF POLICY:** If the policy is to be renewed for enhanced sum insured then the restrictions as applicable to a fresh policy (condition 4.1, 4.2 & 4.3 will apply to additional sum insured) as if a separate policy has been issued for the difference, subject to medical check-up as per norms of the Company. The cost of Medical check-up shall be borne by the insured.
9. **Portability :** THIS POLICY IS PORTABLE TO THE EXTENT THAT THE INSURED MEMBER MAY OPT OUT OF THE GROUP AND SWITCH FROM GROUP INSURANCE PLAN TO INDIVIDUAL/FAMILY INSURANCE COVER WITH THE SAME INSURER(THE GROUP INSURER). PORTABILITY MAINTAINS THE CREDIT GAINED BY THE INSURED FOR PRE- EXISTING CONDITIONS AND TIME BOUND EXCLUSIONS. IF THE INSURED DESIRES TO PORT HIS POLICY, REQUEST FOR THE SAME HAS TO BE MADE ATLEAST 45 DAYS PRIOR TO RENEWAL DATE;
10. **SUM INSURED:** The Company's liability in respect of all claims admitted during the period of Insurance shall not exceed the sum insured limit as mentioned above in the demography section;
11. **AUTHORITY TO OBTAIN RECORDS:** Insured reserves the right to audit and Insurer is under an obligation to extend full support for any such audit (which is not in non-compliance to any of IRDA guidelines. Any violation to Insurers internal policies will be mutually discussed and agreed). Audit may involve unrestricted access to claim documents and also IT systems of TPA.

Insurer will ensure unrestricted access to claim files (both form as requested by the Insured i.e. original files and scanned images) to the HCL team and/or consultant as appointed by HCL for audit / investigation of claims. Insurer to ensure storage of digitization (coloured images) of 100% papers of all claims (irrespective of whether claim got approved or not) and provide real time view

and download access rights to HCL authorized team member/s. Insurer will ensure digital images are of high quality and adequately in a readable / viewable condition. In case of specific request from HCL, Insurer to nominate people from TPA to support for any audit / investigation of claim files. Insurer to ensure implementing preventive and detective controls to timely detect any fraudulent claim. Insurer to ensure timely sharing of all identified fraudulent claim details to HCL Internal Audit team on regular basis (as and when claim is found fraudulent).

Insurer to ensure fulfilling various responsibilities assigned as per detailed scope document prepared and shared by HCL team.

12. a) The insured person hereby agrees to and authorises the disclosure to the insurer or the TPA or any other person nominated by the insurer of any and all Medical records and information held by any Institution / Hospital or Person from which the insured person has obtained any medical or other treatment to the extent reasonably required by either the insurer or the TPA in connection with any claim made under this policy or the insurer's liability thereunder.

b) The insurer and the TPA agree that they will preserve the confidentiality of any documentation and information that comes into their possession pursuant to a) above and will only use it in connection with any claim made under this policy or the insurer's liability thereunder

13. CHANGE OF ADDRESS: Insured must inform the company immediately in writing of any change in the address.

14. QUALITY OF TREATMENT : The insured hereby acknowledges and agrees that payment of any claim by or on behalf of the insurer shall not constitute on part of the insurance company a guarantee or assurance as to the quality or effectiveness of any medical treatment obtained by the insured person, it being agreed and recognized by the policy holder that insurer is not in any way responsible or liable for the availability or quality of any services (Medical or otherwise) rendered by any institution (including a network hospital) whether pre-authorized or not.

15. ID CARDS: The card issued the Insured Person by the TPA to avail cashless facility in the Network Hospital only. Upon the cancellation or non renewal of this policy, all ID cards shall immediately be returned to the TPA at the policy holders expenses and the policy holder and each insured person agrees to hold and keep harmless, the insurer and the TPA against any or all costs, expenses, liabilities and claims (whether justified or not) arising in respect of the actual or alleged use, misuse of such ID cards prior to their return.

16. IRDA REGULATION NO.5: This policy is subject to regulation 5 of IRDA (Protection of Policy Holder interest) regulation.